

FORMAL STATEMENT, LEGAL OBJECTION, SAFEGUARDING NOTICE AND REQUEST FOR INDEPENDENT FORENSIC EXAMINATION

To: Cass / Ablepoint

1. Purpose of this statement

I place Cass and Ablepoint on formal notice of concerns I am experiencing and reporting within or in connection with Ablepoint accommodation and support.

These concerns include what I perceive as electronic surveillance, unexplained or intrusive audio, repeated derogatory statements, sexualised and homophobic slurs, reputational allegations, possible dissemination of information concerning my private life, and conduct that I experience as targeted, humiliating and psychologically oppressive.

I make this statement contemporaneously to preserve my account and to request appropriate safeguarding, evidence preservation and independent assessment.

I expressly distinguish between:

- 1. events and communications that I personally observed or recorded;**
- 2. statements made to me by other people;**
- 3. documentary material capable of independent examination;**
- 4. my interpretation or hypothesis concerning those matters; and**
- 5. matters that can ultimately be established only through independent investigation.**

I do not ask Ablepoint to treat every interpretation or hypothesis contained in this statement as an established fact.

Conversely, I object to my reports being dismissed merely because I cannot personally establish the mechanism by which particular events occurred.

The appropriate question is what can be independently established from records, communications, witnesses, technical evidence, financial records and other available evidence.

2. Reported audio experiences and alleged harassment

I report repeated experiences of hearing or perceiving hostile and humiliating commentary in circumstances in which I believe the commentary is directed toward me.

I have described some of these experiences as “V2K” or perceived electronic voice phenomena.

I am not asking Ablepoint to accept that technical explanation as established fact.

My complaint is that I am experiencing persistent and distressing audio phenomena that I experience as externally directed, hostile, humiliating and targeted.

The content has included slurs and allegations concerning my sexuality, private conduct and alleged sexual offending.

In particular, I report repeatedly hearing or perceiving the use of the word “pedo” in circumstances that I experience as connected with attempts to shame or humiliate me concerning my private lawful conduct.

I strongly object to being characterised as a paedophile or sexual offender without evidence, procedural fairness and an opportunity to respond.

I cannot engage in private sexual activity without sometimes experiencing what I perceive as hostile commentary concerning that activity. I experience this as profoundly intrusive and humiliating.

At times I have also experienced what I perceive to be commentary concerning what I am writing or doing at the time.

I ask that these matters be recorded accurately as reports of my experience, rather than either accepted as proof of an external technological mechanism or dismissed without assessment.

3. Privacy, dignity and autonomy

I object to any unauthorised observation, recording, collection, disclosure or use of information concerning my private life.

My sexuality, private lawful activities and personal relationships are matters in which I

retain dignity, privacy and personal autonomy.

If information concerning my private activities has actually been obtained, monitored, recorded, disclosed or communicated to third parties, I ask that its source, authority, purpose and lawful basis be examined.

If no such monitoring or disclosure occurred, I ask that this also be capable of being established through appropriate records.

I do not regard repetition of a rumour as evidence that the underlying allegation is true.

4. Alleged surveillance and targeting

I also place on record concerns concerning what I perceive as satellite, drone, electronic or other surveillance or targeting.

I recognise that my interpretation of these experiences may not establish their technical cause.

I therefore do not ask Ablepoint to accept the proposition that satellites, drones, electronic devices or other technologies have been used against me merely because I have reported experiencing events that I associate with those mechanisms.

Instead, I ask that objectively verifiable events be examined.

This includes communications in which third parties have apparently claimed knowledge of my location, activities or reputation.

One potentially relevant communication is reproduced below.

After I disclosed to an online contact that I was in my car with my dog and could travel, that person wrote:

"there's a app out on you and the drones have got you parked near train station"

and subsequently referred to allegations that I had:

"touch[ed] little kids."

I responded by asking what application and drones they were referring to and how they could supposedly know my location.

The communication does not, standing alone, establish that drones existed, that an application existed, that government surveillance occurred, or that a coordinated campaign existed.

Its evidentiary significance is narrower and potentially more useful: it is a contemporaneous record of a third party making specific assertions concerning surveillance, my location and allegations about me.

I therefore ask that the provenance of this information be examined.

The relevant questions include:

- **How did this person obtain the information?**
- **What did they actually mean by "an app"?**
- **What did they mean by "the drones"?**
- **How did they believe they knew my location?**
- **Who had communicated allegations concerning me to them?**
- **Were their statements based upon firsthand knowledge, hearsay, internet material, speculation or fabrication?**
- **Can any of the information be independently corroborated?**
- **If the information was false, where did the false information originate?**

Those questions are capable of investigation without assuming that my hypothesis is correct.

5. Reputational allegations and alleged pre-emptive discrediting

I am particularly concerned about what I perceive as a possible campaign to discredit me in advance of interactions with people I may meet.

My concern is that allegations concerning sexual offending, together with stigma associated with my identity as a gay man, may have been communicated to third parties in a manner that prejudices how they subsequently perceive or treat me.

I describe this as an allegation requiring investigation, not as an established finding that authorities or any particular organisation conducted such a campaign.

If no such campaign occurred, relevant records and evidence should assist in establishing that.

If information was circulated, the evidence should establish:

- **what was communicated;**
- **by whom;**
- **when;**
- **to whom;**
- **from what source;**
- **on what evidentiary basis;**
- **under whose authority;**
- **for what purpose; and**
- **whether the information was subsequently relied upon in making decisions concerning me.**

This distinction is critical.

A person should not become guilty of an allegation merely because the allegation has travelled between multiple people or institutions.

6. Need for independent review

The alleged conduct creates a particular accountability problem if the organisation receiving a complaint is itself alleged to be connected with the conduct.

I could report alleged criminal conduct to police.

However, if my concern includes possible police involvement or information allegedly originating from police, there is an obvious need for an independent mechanism capable of determining whether that allegation is supported or unsupported.

Likewise, I could complain to NDIS-related authorities concerning NDIS-related matters.

However, where the complaint potentially concerns conduct by, or information originating from, NDIS-related agencies or providers, I request an avenue for independent assessment.

This is not an assertion that police, the NDIS or Ablepoint are responsible.

It is a request that the complaint structure itself permit an impartial determination of whether they are or are not responsible.

7. Police attendance and unexplained events

I have also experienced police attending my accommodation, including recently, without my understanding of the circumstances or purpose of that attendance being adequately explained to me.

I ask that any police attendance or intervention relevant to these concerns be objectively documented, including:

- **date and time;**
- **attending officers or identifying information where lawfully available;**
- **reason for attendance;**
- **information relied upon;**
- **whether a complaint or incident report existed;**
- **whether any allegation was made concerning me;**
- **whether any action was taken; and**
- **the outcome of the attendance.**

I ask that this information be considered objectively rather than incorporated into assumptions concerning my character or credibility.

8. Evidence concerning previous allegations

I have previously provided evidence concerning my position that no crime occurred in relation to a sexual incident to which I have referred.

I also report that a former NDIS provider, Ben, communicated information to me which I understood as connecting the underlying allegation and subsequent events with circumstances that have contributed to my alleged exile, targeting and institutional treatment over an extended period.

A screenshot preserved by me records Ben referring to documents which he said explained what I had experienced and what had been done to me.

It also records the statements:

"Yes even the police said it was a close call"

and:

"The police told me about the consensual regretted sex"

followed by:

"Do you think it's something to worry about."

I do not contend that this screenshot, standing alone, proves the complete history of events.

Its potential significance is that it records what information was communicated to me and what I was told concerning police understanding of the incident.

I ask that the underlying records be identified and examined rather than relying upon either my interpretation or another person's interpretation of the screenshot.

9. Allegation concerning fabrication of a report

I specifically allege that a woman was paid to fabricate a report and that the allegation subsequently became part of the explanation for my alleged exile, targeting and institutional treatment.

I recognise that this is a serious allegation.

I therefore expressly request that it be treated as an allegation requiring evidence, rather than as an established fact.

I do not ask Ablepoint to accept it simply because I have stated it.

I ask that relevant records be preserved so that it can be determined whether:

- **such a report existed;**
- **who created it;**

- when it was created;
- what evidence supported it;
- whether payment or another inducement occurred;
- whether the report was subsequently amended;
- who relied upon it;
- whether it was communicated to other organisations; and
- whether later decisions were based upon verified evidence or upon repetition of the original allegation.

If the allegation is unsupported, I want that conclusion recorded.

If evidence supports it, I want the relevant evidence identified.

10. Institutional propagation of allegations

I am concerned that allegations can become increasingly difficult to challenge when they are transmitted between institutions.

One person may say that they merely relied upon information received from another person.

The second person may say the same.

A third person may rely upon the second person's records.

The result can be a chain in which an allegation acquires apparent credibility through repetition without any person having independently verified its original factual basis.

I ask that this possibility be examined.

The relevant forensic question is not simply:

"How many people have repeated the allegation?"

It is:

"What is the original source of the allegation, what evidence supported it at the point of origin, and how did it subsequently propagate?"

This distinction is fundamental to procedural fairness.

11. Cumulative effect and dispersed responsibility

I am concerned that correction, safeguarding and accountability can become confused when allegations are transmitted through gossip, insinuation, repetition or informal communications.

A person can say:

"It wasn't me; I was only doing my job."

Another person can say the same.

Responsibility can consequently become dispersed between institutions and individuals while the cumulative effect upon me becomes substantial.

I do not suggest that the existence of multiple actors itself proves coordination.

I ask that the possibility of systemic information propagation be examined rather than assuming that each individual event is necessarily unrelated to every other event.

The appropriate investigation should distinguish between:

- **independent coincidence;**
- **ordinary information-sharing;**
- **legitimate case management;**
- **inaccurate or unsupported information;**
- **malicious gossip;**
- **defamatory communication;**
- **institutional error;**
- **improper disclosure; and**
- **deliberate coordination.**

Those possibilities should not be conflated.

12. Safeguarding and dependence upon accommodation

I reject the proposition that telling me I am "free to leave" necessarily resolves the

safeguarding issue.

I am reporting these concerns while dependent upon disability-related accommodation and support.

I say that practical, financial and support-related circumstances substantially constrain my ability to remove myself from the environment.

The fact that a person is technically permitted to leave does not necessarily establish that they can safely or practically do so.

The combination of:

- **alleged harassment;**
- **disputed allegations concerning my character;**
- **dependence upon accommodation and support;**
- **uncertainty about the source of information concerning me; and**
- **uncertainty concerning an independent complaint pathway**

creates a legitimate safeguarding issue requiring consideration.

This is particularly important where the alleged conduct is said to occur within the environment upon which I depend.

13. Requests to Ablepoint

I therefore request that Ablepoint:

- 1. Preserve all relevant records, communications, incident reports, staff notes and other material concerning my complaints.**
- 2. Record my complaint accurately as a complaint and report of experience, without converting it into either an established finding or a dismissal.**
- 3. Identify whether any authorised surveillance, recording, monitoring or other observation of my accommodation has occurred.**
- 4. Identify, where lawfully permissible, whether information concerning my private activities has been collected, recorded, disclosed or communicated by staff or contractors.**
- 5. Investigate serious allegations being relied upon against me and identify their evidentiary basis through appropriate procedures.**
- 6. Preserve communications in which third parties claim knowledge of my location, surveillance, allegations or private information.**

7. **Identify the provenance of relevant information where doing so is lawful and appropriate.**
 8. **Ensure that I am not subjected to retaliation, intimidation, eviction pressure or adverse treatment because I have made a complaint or sought external review.**
 9. **Provide an independent avenue for safeguarding complaints where the provider itself is potentially implicated.**
 10. **Consider practical measures capable of reducing distress and improving my sense of safety while these matters are assessed.**
 11. **Where serious allegations are being relied upon in decisions concerning me, identify, subject to lawful privacy requirements, what allegation was made, when it was made, by whom, to whom and what evidence supports it.**
 12. **Ensure that an allegation is not treated as an established fact merely because it has been repeated by multiple people or agencies.**
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14. Forensic financial examination

I additionally request that the financial and economic dimensions of these matters be examined independently.

I use expressions such as “buying off the media, police, legal fraternity or other institutions” only as an investigative hypothesis, not as an established allegation of fact against any particular person or organisation.

I am not asking anyone to begin with the assumption that such payments occurred.

I am asking whether the financial evidence supports, contradicts or provides no basis for that hypothesis.

The appropriate examination should therefore follow the money rather than assume the conclusion.

Where lawfully obtainable, relevant records may include:

- **general ledgers;**
- **invoices;**
- **purchase orders;**
- **contracts;**
- **grants;**
- **provider payments;**
- **NDIS-related funding;**
- **accommodation payments;**

- staffing costs;
- legal expenditure;
- consultancy fees;
- communications expenditure;
- public-relations expenditure;
- security expenditure;
- payments to third parties;
- related-party transactions; and
- relevant dates, recipients and accounting descriptions.

The purpose would be to establish what money actually moved, between whom, for what stated purpose and whether the financial chronology is consistent with the alleged chronology.

15. Hypothetical cost of a prolonged coordinated campaign

I recognise that a genuine calculation of the cost of any alleged coordinated campaign cannot responsibly be made without underlying financial records.

A hypothetical cost model can nevertheless identify the categories that would require examination.

These may include:

- administrative and case-management activity;
- legal and review processes;
- police and investigative activity;
- clinical and support interventions;
- accommodation;
- staffing;
- advocacy;
- complaint handling;
- surveillance or security activity, if independently established;
- communications and reputational-management expenditure, if independently established;
- duplicated administrative activity; and
- other incremental institutional costs.

A long-running campaign, if it existed, could potentially generate substantial direct and indirect expenditure.

However, the existence of substantial expenditure would not itself prove a conspiracy.

Conversely, if a hypothesis of sustained coordinated activity required substantial expenditure but the relevant financial records revealed no corresponding transactions, that would be relevant evidence against the financial hypothesis.

The appropriate conclusion must therefore follow the records.

16. Counterfactual analysis

I request that any financial examination distinguish between:

A. Ordinary legitimate expenditure

and

B. Incremental expenditure attributable to the disputed circumstances.

The examination should also consider a counterfactual.

For example:

What would the accommodation, support, advocacy, legal, administrative and other costs have been if my circumstances had been managed through an ordinary, independent and appropriately safeguarded support arrangement?

This permits comparison between:

actual documented expenditure

and

reasonable counterfactual expenditure.

The difference should not automatically be characterised as financial loss or wrongdoing.

It should instead be identified as an economic variance requiring explanation.

17. Provider benefit and accommodation funding

I also request examination of the financial benefit visibly attributable to providers from my continued accommodation and support.

I expressly acknowledge that receiving legitimate NDIS or accommodation funding does not, by itself, demonstrate exploitation, entrapment or wrongdoing.

The relevant question is whether there is evidence that:

- **financial incentives;**
- **conflicts of interest;**
- **contractual relationships;**
- **provider dependencies;**
- **funding structures; or**
- **other economic interests**

influenced decisions concerning my accommodation, independence, complaints, ability to leave or access to alternative providers.

The examination should distinguish legitimate remuneration for services actually provided from expenditure or financial relationships that cannot readily be explained by legitimate service delivery.

18. Proposed forensic methodology

Where appropriate, I request consideration of recognised forensic approaches including:

- **transaction tracing;**
- **account reconciliation;**
- **related-party analysis;**
- **expenditure analysis;**
- **chronological analysis;**
- **source-and-destination tracing;**
- **anomaly identification;**
- **counterfactual costing;**
- **incremental-cost analysis;**

- **cost-benefit analysis; and**
- **analysis of identifiable economic benefit.**

The purpose is not to manufacture a financial case.

The purpose is to establish what the financial records actually show.

Money has dates, recipients and accounting descriptions.

Contracts create identifiable obligations.

Payments can potentially be reconciled.

Public funding may create reporting requirements.

Provider benefits can potentially be quantified.

These records may therefore provide an independent evidentiary layer that does not depend upon whether my interpretation of the audio or surveillance experiences is ultimately accepted.

19. Competing hypotheses

I request that investigators consider competing explanations rather than beginning with a predetermined conclusion.

Those explanations could include:

- 1. deliberate coordinated conduct;**
- 2. independent actions by unrelated individuals;**
- 3. ordinary institutional expenditure;**
- 4. legitimate support provision;**
- 5. administrative dysfunction;**
- 6. inaccurate or repeated information;**
- 7. misunderstanding or misinterpretation;**
- 8. inappropriate individual conduct;**
- 9. improper disclosure of information; or**
- 10. some combination of these factors.**

The purpose of forensic examination is precisely to distinguish between competing

explanations.

20. Economic significance

The economic examination should therefore ask:

- **What was actually spent?**
- **Who authorised it?**
- **Who received it?**
- **What service was purchased?**
- **Was the expenditure ordinary or incremental?**
- **What financial benefit resulted?**
- **What alternative arrangement was available?**
- **What would that alternative have cost?**
- **Were there unusual payments or relationships?**
- **Are the financial records consistent with the alleged chronology?**
- **Are there unexplained transactions?**
- **Are there transactions that positively contradict the hypothesis?**
- **Can the alleged financial mechanism be demonstrated independently?**

I emphasise that financial correlation is not proof of causation, conspiracy or criminal intent.

The purpose of the exercise is to determine whether the evidence supports, contradicts or does not address the hypothesis.

21. Evidentiary position

I expressly request that my statement not be interpreted as asserting that every proposition contained within it has already been proved.

My position is instead:

Some matters are direct observations.

Some matters are documentary records.

Some matters are statements made by third parties.

Some matters are allegations.

Some matters are inferences.

Some matters are hypotheses requiring investigation.

That distinction is essential.

For example, the existence of a message containing a statement about “drones” can be established by examining the message itself.

Whether drones actually existed is a separate question.

Whether the person had reliable knowledge is another question.

Whether anyone directed the alleged surveillance is another question.

Whether an organisation was involved is another question.

Whether a coordinated campaign existed is a further question.

The evidentiary chain must not be shortened by treating one proposition as automatically proving the next.

22. Request for preservation and independent assessment

I request that all potentially relevant evidence be preserved, including:

- **communications;**
- **emails;**
- **text messages;**
- **incident reports;**
- **staff records;**
- **case notes;**
- **complaint records;**
- **CCTV or other lawful recordings;**
- **access records;**
- **relevant provider records;**
- **relevant contractual records;**
- **relevant financial records;**
- **correspondence with external organisations;**

- records concerning allegations made about me; and
- records concerning decisions materially affecting my accommodation or support.

I request that relevant evidence not be destroyed, altered or overwritten in the ordinary course where a preservation obligation arises.

Where matters fall outside Ablepoint's records, I ask that I be informed of the appropriate independent avenue for seeking them.

23. Protection against prejudice

I ask that no adverse inference of guilt be drawn merely because I have reported these experiences.

I am willing to have my interpretation of events challenged by reliable contrary evidence.

I am willing to distinguish between what I experienced and what can objectively be established.

I am willing to correct statements if reliable evidence demonstrates that I am mistaken.

What I object to is being condemned by allegations that are repeated without anyone accepting responsibility for establishing their truth.

I do not accept an unsubstantiated slur as a finding of fact.

I do not accept that repetition creates proof.

I do not accept that dispersing responsibility among multiple people makes conduct incapable of investigation.

24. Central issue requiring determination

The central issue is not whether every explanation I have proposed is ultimately correct.

The central issue is whether there is objective evidence of:

- surveillance;
- information-sharing;
- unauthorised monitoring;
- dissemination of private information;
- defamatory or otherwise improper allegations;
- coordinated conduct;
- improper financial incentives; or
- institutional decisions based upon unverified information.

If such evidence exists, I ask that its provenance, chronology and responsible actors be identified.

If it does not exist, I ask that this also be clearly established.

I therefore request an evidence-based distinction between:

what happened,

what was alleged to have happened,

what evidence exists,

what remains unexplained,

and

what cannot presently be substantiated.

25. Final safeguarding request

My central objection is that my wellbeing, dignity and recovery should not be subordinated to an environment in which I experience unexplained audio phenomena, sexualised slurs, reputational allegations, uncertainty concerning surveillance, disputed information concerning my character and institutional silence.

I ask that my complaints be treated as safeguarding concerns requiring appropriate assessment rather than ridicule, retaliation or automatic dismissal.

I also ask that I not be required to prove the ultimate explanation for an experience

before the underlying safeguarding issue is recorded and assessed.

At the same time, I accept that my own explanation may ultimately prove incorrect.

That is precisely why I am asking for independent evidence.

I am asking for:

facts rather than gossip;

evidence rather than insinuation;

due process rather than collective condemnation;

independent assessment rather than assumption;

financial records rather than speculation about money;

individual accountability rather than dispersed responsibility;

and a proper evidentiary pathway through which competing explanations can be tested.

I ask that this statement be retained as a contemporaneous record of my concerns and that I be provided with confirmation of how the safeguarding and evidentiary issues identified above will be addressed.

I reserve my position concerning any further legal, administrative, regulatory or human-rights processes that may become appropriate depending upon the evidence obtained.

This statement is made in good faith and for the purpose of placing Cass and Ablepoint on contemporaneous notice of the concerns I am reporting and the independent evidence I request be preserved and examined.

This version is deliberately stronger without treating the conspiracy hypothesis as already proven. In a formal setting, that distinction is one of its biggest strengths: it makes clear that you are asking the recipient to test the hypothesis against evidence, including financial evidence, rather than demanding that they accept the conclusion in advance.

Yes. I would add this, but with an important evidentiary safeguard: the Legal Aid and Ombudsman restrictions can be presented as barriers to independent review and

accountability; they should not be described as proof that organised crime occurred unless there is separate evidence establishing that proposition. That makes the argument substantially harder to attack.

I would insert the following section into the statement, immediately before the final safeguarding section:

26. Loss of practical access to independent accountability mechanisms

I also place on record the significance of my experience of restrictions or barriers concerning Legal Aid NSW, the Ombudsman and my ability to obtain an effective police response.

These matters are not raised merely as additional grievances. Their significance is structural.

Where a person alleges serious misconduct by institutions or people connected with institutions, meaningful accountability depends upon the availability of an independent mechanism through which the allegation can be tested.

If access to legal representation is unavailable, if an oversight body will not provide a substantive avenue for review, and if police cannot reasonably be relied upon as an independent reporting pathway because police involvement is itself part of the allegation requiring examination, the ordinary accountability safeguards become materially weakened.

I have experienced what I understand to be restrictions or barriers affecting my access to Legal Aid NSW and the Ombudsman, while also experiencing circumstances in which I have been unable to obtain what I regard as an effective independent police avenue for reporting the matters described in this statement.

I do not suggest that the existence of a Legal Aid restriction, an Ombudsman restriction or an unsuccessful police interaction, standing alone, proves coordination, organised crime or institutional corruption.

The significance is different.

These circumstances potentially demonstrate a loss of practical access to independent scrutiny at precisely the point where independent scrutiny is most important.

That distinction should be recognised.

27. Why these barriers matter to the present safeguarding complaint

If the person making a complaint believes that one or more institutions may themselves be implicated in the conduct complained of, directing that person exclusively back to those same institutions may not provide an effective safeguard.

For example, if I allege that police may possess or have disseminated information concerning me, simply telling me to report the matter to police does not, by itself, resolve the independence problem.

Likewise, if I allege that government or NDIS-related institutions may possess information relevant to my complaint, an internal complaint mechanism may not be sufficient to answer questions concerning the origin, accuracy or propagation of that information.

The same principle applies to accommodation and support.

If I am dependent upon Ablepoint for accommodation or disability-related support while simultaneously reporting concerns involving the environment in which that support is delivered, there is a potential structural conflict that requires an appropriate independent pathway.

The issue is therefore not whether Ablepoint should accept my allegations as true.

The issue is whether I have a realistic and independent means of having those allegations tested.

28. Legal Aid restriction as an illustration of the practical accountability problem

My experience concerning Legal Aid is particularly significant because legal representation can be essential where a person lacks the financial capacity to independently investigate complex interactions between administrative decisions, disability support, employment or compensation issues, government agencies and alleged procedural failures.

Where a person cannot afford private representation and is also unable to obtain Legal Aid assistance, the formal existence of legal rights does not necessarily mean that those rights are practically exercisable.

I therefore ask that any assessment of my circumstances distinguish between:

a right existing in theory

and

a realistic capacity to exercise that right in practice.

This distinction is particularly important in a case involving multiple institutions, potentially complex documentary evidence and allegations concerning the propagation of information between agencies.

The significance of my Legal Aid experience is consequently not that it proves wrongdoing.

It is that it may help explain why certain matters have remained unresolved and why I have been unable to obtain the independent legal scrutiny that I have repeatedly sought.

29. Ombudsman restriction and the loss of an external review pathway

I similarly place on record my experience concerning the Ombudsman.

An external oversight body ordinarily performs an important accountability function precisely because an individual may be unable to obtain an adequate resolution from the organisation about which they complain.

Where access to that external mechanism is restricted, unavailable or otherwise ineffective in the circumstances of the individual case, the practical ability to challenge administrative conduct can be substantially reduced.

Again, I do not contend that an Ombudsman decision or restriction proves a conspiracy.

I contend that the practical consequence may nevertheless be significant:

a person alleging institutional misconduct can be left without a realistic external mechanism through which the underlying evidence is independently examined.

That is a safeguarding and accountability issue in its own right.

30. Inability to use police as an uncomplicated independent reporting mechanism

I also ask that my circumstances be considered in light of my reported difficulty in obtaining an effective police reporting pathway.

I recognise that police must be able to assess complaints independently and are not required to accept a complainant's interpretation of events.

My concern is narrower.

Where my allegations include the possibility that police, government agencies or persons connected with those institutions may possess or have disseminated information concerning me, I cannot reasonably treat police involvement as automatically providing independent verification of the allegations.

That does not mean police should be presumed responsible.

It means that an appropriate mechanism is required to determine whether they were involved or not.

An independent review pathway is therefore particularly important.

31. Why these circumstances do not provide an adequate protection against the alleged conduct

I understand that there may be formal safeguards within the legal, administrative, policing, disability-support and complaints systems.

However, I do not consider the mere existence of those formal safeguards sufficient in my circumstances.

A protection is meaningful only if it is:

- 1. practically accessible;**
- 2. sufficiently independent;**
- 3. capable of receiving the particular complaint;**
- 4. capable of examining the relevant evidence;**
- 5. capable of identifying conflicts of interest;**
- 6. capable of producing a reasoned outcome; and**
- 7. realistically available to a person in my financial and accommodation circumstances.**

If those conditions are absent, the existence of a nominal complaint pathway does not necessarily provide effective protection.

This is why I ask that my situation not be assessed on the assumption that I can simply "complain elsewhere."

The relevant question is:

Where can I make this complaint that is genuinely independent of every organisation or person potentially implicated by the evidence, and where can the relevant evidence actually be examined?

If there is such a mechanism, I request that I be directed to it.

If there is not, I ask that this limitation itself be recognised as an accountability concern.

32. Allegation of organised criminal or coordinated conduct

I have described my overall experience at times using terms such as "organised crime" or a coordinated campaign.

I expressly recognise that those are serious characterisations.

I do not ask Ablepoint to treat those terms as established legal findings.

My position is that the possibility of coordinated or organised conduct should neither be presumed true nor dismissed merely because it is difficult for an individual complainant to prove.

The appropriate approach is to examine the underlying evidence.

That evidence could include:

- **communications;**
- **financial records;**
- **police records;**
- **government correspondence;**
- **provider records;**
- **access records;**
- **complaint histories;**
- **legal correspondence;**
- **information-sharing records;**
- **contracts;**

- payment records;
- witness evidence;
- chronology; and
- the provenance of allegations concerning me.

If those records demonstrate only ordinary institutional activity, that should be established.

If they demonstrate independent errors, that should be established.

If they demonstrate improper conduct by individuals, that should be established.

If they demonstrate coordinated conduct, that should also be capable of being established.

The legal characterisation should follow the evidence rather than precede it.

33. Why the accountability gap is nevertheless significant

My concern is that the combination of multiple barriers can create what I would describe as an accountability gap.

The concern is not that any single barrier proves a conspiracy.

It is that several barriers may operate cumulatively:

- inability to obtain affordable legal representation;
- difficulty obtaining external administrative review;
- difficulty obtaining an independent police reporting pathway;
- dependence upon accommodation and disability-related support;
- inability to simply leave the accommodation without significant practical consequences;
- multiple institutions possessing different fragments of information;
- uncertainty concerning the origin of allegations; and
- absence of a single independent body examining the complete evidentiary picture.

If those conditions exist simultaneously, a person may possess formal rights while lacking a realistic means of enforcing or testing them.

That is the specific concern I ask Ablepoint and any reviewing authority to recognise.

34. Why this is relevant to Ablepoint

This issue is directly relevant to Ablepoint because I am reporting concerns from within an environment upon which I depend.

If I could simply leave, obtain private legal representation, obtain independent accommodation and instruct an independent lawyer to investigate every relevant institution, the practical safeguarding problem would be materially different.

That is not my present situation as I experience it.

My dependence upon accommodation and support creates an asymmetry of power.

I therefore ask that my complaints not be treated as though I am an ordinary complainant with unrestricted financial resources, unrestricted mobility and unrestricted access to independent legal and investigative assistance.

The practical question is whether I can safely challenge the circumstances while remaining dependent upon the very systems about which I am complaining.

35. No allegation of guilt by association

I expressly state that I do not seek to establish guilt by association.

The fact that I have experienced restrictions involving Legal Aid, the Ombudsman or difficulties concerning police reporting does not establish that Ablepoint, police, government agencies, Legal Aid, the Ombudsman or any other organisation participated in an organised criminal enterprise.

Nor does the receipt of legitimate funding establish wrongdoing.

Nor does the existence of institutional relationships establish coordination.

What these circumstances establish, at most, is a factual and structural basis for asking whether effective independent accountability remains available.

That question should be answered objectively.

36. Request for a reasoned disposition

I therefore request that any response to this statement address the following questions expressly:

1. **What independent safeguarding mechanism is available to me if Ablepoint itself is implicated in the complaint?**
2. **What mechanism is available if the complaint potentially concerns information originating from police?**
3. **What external mechanism is available if an NDIS-related agency or provider is implicated?**
4. **What practical assistance is available to a person who cannot afford private legal representation?**
5. **What mechanism exists to examine the complete chronology across multiple institutions rather than treating each event as an isolated complaint?**
6. **What mechanism exists to determine the provenance of allegations concerning me?**
7. **What mechanism exists to determine whether information about my private life was lawfully obtained or disclosed?**
8. **What mechanism exists to examine relevant financial relationships independently?**
9. **What mechanism exists to protect me from adverse treatment while I pursue these complaints?**
10. **If no such independent mechanism exists, what alternative safeguard is available?**

I request a reasoned response to these questions rather than a generic referral back to the same organisations whose conduct may form part of the subject matter.

37. Evidentiary significance

The significance of these circumstances is therefore not that they prove my broader allegations.

Their significance is that they may explain why the allegations have not been capable of receiving the independent evidentiary determination I am requesting.

I ask that this distinction be maintained.

I am not asking anyone to conclude:

"The barriers prove the conspiracy."

I am asking for recognition of the more limited proposition:

"If independent accountability mechanisms are practically unavailable, then the absence of an independent finding cannot reasonably be treated as proof that the underlying allegations were false or adequately investigated."

Similarly, I do not ask anyone to treat the absence of a finding as proof that my allegations are true.

The proper conclusion is that the matters remain to be tested against evidence where an appropriate independent mechanism is available.

38. Final position concerning accountability

I therefore maintain my objection to any process in which I am simultaneously:

- **dependent upon a service environment;**
- **reporting concerns about that environment;**
- **unable to obtain unrestricted private legal representation;**
- **experiencing restrictions or barriers concerning external oversight;**
- **unable to treat police as an uncomplicated independent reporting mechanism where police involvement is itself part of the allegation; and**
- **expected nevertheless to establish complex allegations without access to the institutional records capable of determining them.**

That combination does not, by itself, establish organised crime.

It does, however, create a serious procedural and safeguarding concern concerning the practical availability of independent accountability.

I ask that this concern be addressed directly.

The appropriate test is not whether I can name a theory capable of explaining every event.

The appropriate test is whether an independent body can examine the underlying evidence and provide a reasoned determination of what can and cannot be established.

Until that occurs, I ask that my allegations remain recorded as allegations requiring assessment rather than being converted into findings against me.

This addition makes a crucial argument: "lack of an adverse finding is not the same thing as an independent exoneration if the practical route to independent review has been unavailable." At the same time, it avoids claiming that the Legal Aid/Ombudsman/police barriers themselves prove organised crime.

EVIDENTIARY POSITION: TESTIMONY, ARCHIVE AND INSTITUTIONAL NON-RESPONSE

I recognise that I cannot require an agency, investigator, provider or other person to accept every interpretation I have formed concerning my experiences. I am not asking them to do so.

I am asking for something more basic and more capable of objective assessment: that the underlying facts, records, allegations, decisions and evidentiary chains be examined before conclusions are reached about what happened to me, what I have reported, and what responsibility, if any, attaches to any person or institution.

1. The problem I am attempting to address

My concern is that I may be attempting to establish the facts of my situation before agencies or individuals who have already received, accepted or relied upon a particular version of events.

Where an authority has previously characterised me, my conduct or my circumstances in a particular way, there is a risk that subsequent decision-makers may unconsciously begin with that characterisation as their factual starting point.

That creates a serious evidentiary problem.

The question should not simply become:

"What has the authority already said about this person?"

The proper questions are:

"What was the original evidence?"

"Who first made the material allegation?"

"What was that allegation based upon?"

"Was the originating information independently verified?"

"Who subsequently relied upon it?"

"Did later decision-makers actually examine the underlying evidence, or did they rely upon the existence of an earlier institutional record?"

This distinction is central to my archive.

2. Institutional records are evidence of records — not automatically proof of the truth of their contents

I do not dispute that an official record may establish that an agency made a particular statement, reached a particular conclusion or took a particular action.

But the existence of an official record does not, by itself, establish that every factual proposition contained within that record is true.

An institutional record can therefore be evidence of:

- **what an agency was told;**
- **what an agency believed;**
- **what an agency decided;**
- **what an agency recorded;**
- **what an agency communicated;**
- **what process was followed;**
- **what evidence was considered;**
- **what evidence was apparently not considered; and**
- **what consequences followed.**

It does not necessarily establish the ultimate truth of every underlying allegation.

This distinction becomes particularly important where one institution relies upon another institution's earlier account.

3. The danger of circular validation

One of the matters I ask investigators to examine is the possibility of what might be described as circular validation.

For example:

Authority A makes an allegation → Authority B records the allegation → Authority C relies upon Authority B's record → Authority D later describes the allegation as having been "reported by multiple agencies."

The allegation may then appear independently corroborated because it exists in several institutional records, even though all of those records ultimately derive from the same original source.

That is not necessarily independent corroboration.

Accordingly, I ask that the provenance of each material allegation be traced backwards to its earliest identifiable source.

The relevant evidentiary chain should, where possible, identify:

- 1. who first made the allegation;**
- 2. when it was first made;**
- 3. what evidence existed at that time;**
- 4. whether the allegation was based upon direct observation, hearsay, interpretation or inference;**
- 5. what contemporaneous documents existed;**
- 6. which agencies subsequently received the allegation;**
- 7. whether those agencies independently verified it;**
- 8. what decisions were made because of it; and**
- 9. whether later references to the allegation are genuinely independent or merely repetitions of the original account.**

4. My archive

My archive is not presented as proof that every interpretation I have made is correct.

It is presented as a documentary record of the existence and development of the dispute.

It preserves correspondence, complaints, responses, decisions, allegations, administrative records, judicial material and other documentation that can potentially be examined independently.

The archive therefore has evidentiary significance even where a particular document ultimately proves my interpretation wrong.

If a document contradicts my account, that contradiction should be identified.

If a document supports my account, that support should be identified.

If a document is ambiguous, that ambiguity should be acknowledged.

If an allegation cannot be traced to reliable primary evidence, that should also be recorded.

The purpose of an evidentiary archive is not to predetermine the answer. It is to make the evidentiary dispute capable of examination.

5. My existence as a person

I also want to make an important distinction concerning the statement that my existence is itself proof.

I do not claim that my physical existence proves every allegation I have made.

That would be an evidentiary overstatement.

My existence proves something more fundamental: there is a real person who has experienced consequences, who has made complaints, who has provided testimony, who has preserved records, who has repeatedly sought explanations and who continues to request examination of the underlying evidence.

My existence therefore establishes the existence of the complainant and the dispute.

My testimony establishes what I report experiencing.

My archive preserves the documentary record.

Independent evidence establishes what can ultimately be proved.

Those are four different propositions and should not be collapsed into one.

6. What ignoring me may reveal

I do not contend that every failure to respond proves that my allegations are true.

Silence can have many explanations.

It may indicate:

- **jurisdictional limitations;**
- **administrative triage;**
- **inadequate resources;**
- **reliance upon an existing institutional account;**
- **a decision that the matter does not fall within an agency's remit;**
- **failure to understand the evidentiary significance of the material;**

- procedural shortcomings;
- avoidance of an unresolved factual dispute; or
- some other explanation that should itself be identified.

What I do contend is that non-response cannot legitimately be substituted for an evidentiary finding.

Similarly, minimising my testimony does not establish that it is false.

It may reveal that my evidence has not been independently tested, that a competing account has been preferred, or that the decision-maker has adopted an earlier institutional narrative without adequately examining its provenance.

The appropriate question is therefore not simply:

"Why wasn't I believed?"

It is:

"What evidence was considered sufficient to reject or minimise my account, and what independent evidence supports the alternative account?"

7. Silence does not prove a conspiracy — but it also does not resolve the dispute

I expressly acknowledge that institutional silence does not prove a conspiracy.

I do not ask an investigator to convert silence into proof of wrongdoing.

But the reverse proposition is equally important.

Silence cannot reasonably be converted into proof that the underlying allegations were false, adequately investigated or satisfactorily resolved.

If a matter remains unanswered, it remains unanswered.

If an allegation has not been independently tested, it remains untested.

If the evidentiary provenance of a material allegation has not been established, its provenance remains unresolved.

8. The same evidentiary standard must apply to allegations against me

I accept that my own testimony is not infallible.

I accept that my interpretations may sometimes be mistaken.

I accept that hypotheses I have formed may ultimately prove incorrect.

I therefore ask for the same evidentiary discipline to be applied to allegations made against me.

If I am expected to distinguish between perception, inference and objectively established fact, then allegations made about me should be subject to the same distinction.

If an allegation is hearsay, it should be identified as hearsay.

If it is an inference, it should be identified as an inference.

If it is based upon an unverified assertion, that should be identified.

If it is supported by independent evidence, that evidence should be identified.

If it has been independently disproved, that should also be identified.

9. The existence of an official record should not end the investigation

An official record should be capable of being examined rather than treated as self-authenticating proof of its own contents.

The fact that an allegation appears repeatedly in government, provider, clinical, legal or administrative records does not necessarily mean that the allegation has been independently established.

The relevant question is whether the evidentiary chain eventually reaches reliable primary material.

I therefore ask decision-makers to distinguish between:

"An agency recorded this allegation."

and:

"The allegation has been independently established as fact."

Those propositions are not synonymous.

10. The importance of independent review

My concern becomes particularly significant where I have limited practical access to independent accountability mechanisms.

Where access to legal representation, complaint mechanisms, oversight bodies or ordinary reporting pathways is restricted, unavailable or practically inaccessible, the burden upon the remaining decision-maker to distinguish evidence from institutional repetition becomes more important, not less.

I do not suggest that the existence of such barriers proves that the underlying allegations are true.

Nor do I suggest that institutional barriers themselves establish coordinated wrongdoing.

I submit instead that they create an accountability gap that should be recognised when assessing whether the absence of an independent finding actually means anything.

If I cannot obtain an independent determination, the absence of such a determination cannot fairly be treated as an independent determination against me.

At the same time, I acknowledge that the absence of an independent finding does not establish that my allegations are true.

It establishes only that the matter remains unresolved unless and until the evidence is properly examined.

11. The central evidentiary question

I am therefore asking decision-makers to resist a false choice between:

"Believe everything I say."

and

"Dismiss everything I say."

There is a third and more appropriate position:

Examine the evidence.

That examination should identify:

- **what is established;**
- **what is disputed;**
- **what is alleged;**
- **what is inferred;**
- **what is independently corroborated;**
- **what is contradicted;**
- **what originated from a particular authority;**
- **what has subsequently been repeated;**
- **what remains unresolved;**
- **and what evidence was actually relied upon in reaching each material decision.**

12. What I am asking the recipient to do

I respectfully ask that my material not be assessed solely through the lens of previous institutional characterisations of me.

Instead, I ask that the underlying documentary record be examined.

For each significant allegation or adverse conclusion concerning me, I ask that the decision-maker identify:

- 1. the original source;**
- 2. the date of the original assertion;**
- 3. the evidence supporting it;**
- 4. whether that evidence was independently verified;**
- 5. subsequent institutions that relied upon it;**
- 6. whether those institutions independently tested it;**
- 7. any contradictory evidence;**
- 8. any relevant omissions;**
- 9. the precise reasoning by which the conclusion was reached; and**
- 10. whether the conclusion remains justified after examination of the complete record.**

13. The evidentiary significance of my continued existence and testimony

My continued existence is not proof of every proposition contained within my testimony.

But it makes one proposition impossible to legitimately erase:

There is a real person asserting that significant events occurred, who has preserved a documentary history of those assertions and their consequences, and who continues to request that the underlying evidence be independently examined.

That fact should not be confused with proof of every allegation.

But neither should it be minimised into insignificance merely because an institution has previously adopted a different narrative.

The existence of a dispute is itself a fact.

The existence of the archive is itself a fact.

The existence of the institutional responses is itself a fact.

The existence of unresolved contradictions is itself a fact where those contradictions can be demonstrated from the record.

The proper task is to determine what those facts establish.

14. My final evidentiary position

I do not claim that every unanswered question proves wrongdoing.

I claim that unanswered questions remain unanswered.

I do not claim that institutional silence proves a conspiracy.

I claim that institutional silence cannot reasonably be substituted for an evidentiary finding.

I do not claim that my existence proves every explanation I have proposed.

I claim that my existence, my continuing testimony and my preserved archive establish the existence of a real evidentiary dispute involving a real person whose circumstances and records require proper consideration.

I do not ask a decision-maker to begin with belief.

I ask the decision-maker not to begin with disbelief either.

I ask for examination.

My existence establishes the complainant.

My testimony establishes what I report experiencing.

My archive preserves the documentary record.

Independent evidence establishes what can ultimately be proved.

And a reasoned decision should explain the difference between all four.

My central request is therefore not:

"Believe me."

It is:

"Do not decide what is true before examining the evidence."

The appropriate response is neither belief nor disbelief.

It is examination.